



U.S. Department
of Transportation

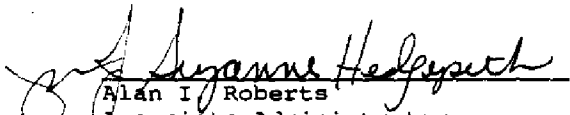
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9920 (EXTENSION)
FIRST REVISION December 27, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9920 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 30 1993

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Tri-Wall
Butler, IN

September 20, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
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400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 27 1989

DOT-E 9920
(FIRST REVISION)

1. Tri-Wall, Louisville, Kentucky, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of various corrosive solids and poison B solids described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacturing, marking and sale of non-reusable, fiberboard bulk boxes made of triple-wall corrugated fiberboard having an inside lining of 0.006-inch minimum thickness polyethylene film. Bulk boxes must be securely mounted to wood pallet bases and may not contain more than 2,400 pounds of waste corrosive solids or poison B solids, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Tri-Wall's application dated August 28, 1988, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Corrosive solids, classed as corrosive material; Poison B solids, classed as poison B.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive solid, n.o.s.; Poison B, solid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate, preceded by the word "Waste".

5. REGULATION AFFECTED. 49 CFR 173.245b; 173.365.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification non-reusable fiberboard bulk box of triple-wall corrugated fiberboard construction and mounted securely to a wood pallet base. Box, fabricated according to the description in the application dated January 21, 1988, is fitted with a lining of polyethylene film of 0.006-inch minimum thickness and contains no more than 2,400 pounds of product.

Box, closed as for shipment, must be capable of satisfactorily withstanding the performance tests (Vibration; Incline Impact; Bottom Tilt-Drop; Static Compression; Dynamic Compression) prescribed and results of which are furnished in Package Research Laboratory report dated October 8, 1987, included in application.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. Packagings are to be used for waste solids from plant site to waste disposal site and are not to be reused.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

e. Each box must be marked "DOT-E 9920" and "NON-REUSABLE CONTAINER" in letters at least two inches high on a contrasting background on two opposite sides of the box.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure or damage must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. July 31, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

DEC 27 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.